

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JASON PEREZ AND ENID LOPEZ

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE MEJIA
RONNIE [TAX REG. #949317], SERGEANT JOHN
FATTORUSSO [TAX REG. #945710] AND JOHN DOE
AND JANE DOE #1-4 (the names John and Jane Doe
being fictitious, as the true names are presently unknown),
Defendants.

-----X

Index Number:
Date Purchased:

Plaintiff designates New
York County as the
place of trial.

The basis of venue is:
Place of Occurrence

SUMMONS

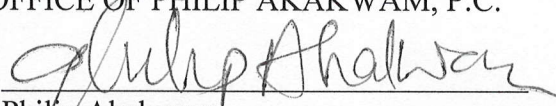
Plaintiff resides at
419 W 17th St., #9C
New York, NY 10011
County of New York

To the above named Defendant:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action by filing same at the New York County Supreme Court located at Supreme Court Building, 60 Centre Street, New York, NY 10007, and to serve a copy of your Answer, or if the Complaint is not served with the Summons, to serve a notice of appearance, on the plaintiff within 20 (twenty) days after the service of this summons, exclusive of the day of service (or within 30 (thirty) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in the case of your failure to answer or appear, judgment will be taken against you by default for the relief demanded in the Complaint annexed herewith.

Dated: Brooklyn, New York
August 28, 2024

LAW OFFICE OF PHILIP AKAKWAM, P.C.

By: 
Philip Akakwam
Attorneys for Plaintiff
303 Livingston St., 2nd Floor
Brooklyn, NY 11217
(718) 858-2488

Defendant's Address:

The City of New York, c/o Corporation Counsel, 100 Church St., New York, NY 10007
Det. Mejia Ronnie, NYPD 10th Precinct, 230 W 20th St., New York, NY 10011
Sergeant John Fattorusso, NYPD 76th Precinct, 191 Union St., Brooklyn, NY 11231

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JASON PEREZ and ENID LOPEZ,

Index No.

Plaintiffs,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, DETECTIVE MEJIA
RONNIE [TAX REG. #949317], SERGEANT JOHN
FATTORUSSO [TAX REG. #945710] and JOHN DOE
AND JANE DOE #1-4 (the names John and Jane Doe
being fictitious, as the true names are presently unknown),

Defendants.

-----X
Plaintiffs, JASON PEREZ and ENID LOPEZ, by their attorney, The Law Office of PHILIP
AKAKWAM, P.C., complaining of the defendants herein, The City of New York, Detective Mejia
Ronnie [Tax Reg. #949317], Sergeant John Fattorusso [Tax Reg. #945710] and John Doe and Jane
Doe #1-4 (collectively, "Defendants"), respectfully allege as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiffs under
color of statute, ordinance, regulation, custom, and/or to redress the deprivation of rights, privileges,
and immunities secured to the plaintiffs by the Fourth, Fifth, and Fourteenth Amendments to the
Constitution of the United States, and by Title 42 U.S.C. § 1983, and arising under the law and
statutes of the City and State of New York.

THE PARTIES

2. Plaintiffs, who are related -- Ms. Lopez is Mr. Perez's mother -- are and were at all times
material herein residents of the United States and the State of New York.

3. Defendant City of New York ("City") is a municipal corporation duly organized and existing under the laws of the State of New York.

4. The City of New York Police Department ("NYPD") is an agency of defendant City, and all officers referred to herein were at all times relevant to this complaint employees and agents of defendant City.

5. Defendant Detective Mejia Ronnie [Tax Reg. #949317] was at all times material herein a detective employed by the NYPD. He is named here in his official and individual capacities.

6. Defendant Sergeant John Fattorusso [Tax Reg. #945710] was at all times material herein a sergeant employed by the NYPD. He is named here in his official and individual capacities.

7. Defendants John Doe and Jane Doe #1-4 were at all times material herein individuals and/or officers employed by the NYPD. They are named here in their official and individual capacities.

8. Detective Ronnie, Sergeant Fattorusso, and John Doe and Jane Doe are collectively referred to herein as "defendant officers".

9. At all times material to this Complaint, the defendant officers acted towards plaintiffs under color of the statutes, ordinances, customs, and usage of the State and City of New York.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

10. On or about July 14, 2022, at approximately 9:40 p.m., defendant officers, acting in concert, assaulted and unlawfully detained the plaintiffs and, ultimately, arrested plaintiff Jason Perez ("Mr. Perez") without cause at or within the vicinity of their home which is located at 419 W 17th Street, Apt. 9C, New York, New York, and falsely charged him with N.Y. PL 215.51 BI EF 'Criminal contempt -1st weapon', N.Y. PL 240.26.01 V 'Harassment - 2nd', N.Y. PL 120.00 01 AM

'Assault with intent to cause physical harm', N.Y. PL 120.02 'Assault: Recklessly causing physical injury', N.Y. PL 120.14 01 'Menacing-2nd: weapon'.

11. However, plaintiffs did not commit any offense against the laws of New York City and/or State.

12. Prior to the arrest and encounter, the plaintiffs were inside their home when defendant officers forced their way into the plaintiffs' home without any warrant or authority damaging and/or destroying the plaintiff's properties.

13. The defendant officers had claimed that they had an I-Card for Mr. Perez and that they had come to take him away.

14. Ms. Lopez objected to the defendant officers entering her home without a warrant and taking her son.

15. Notwithstanding the objections by Ms. Lopez, the defendant officers forcibly entered the plaintiffs' home.

16. Upon entry, defendant officers immediately demanded to search the plaintiffs' home.

17. Plaintiffs demanded defendant officers to show them any warrant or authorization permitting the search of their home.

18. The defendant officers held Ms. Lopez in her home for a period of time causing her fear and anxiety.

19. Defendant officers immediately proceeded to forcibly grab Mr. Perez and slam him down on the floor.

20. Defendant officers tightly handcuffed Mr. Perez with his hands placed behind his back.

21. Mr. Perez complained that the handcuffs were too tight and were causing him to experience pain and numbness.

22. Mr. Perez pleaded with the defendant officers to remove or loosen the handcuffs.

23. Defendant officers ignored the plaintiffs' pleas to remove or loosen the handcuffs.

24. Defendant officers proceeded to perform a warrantless and unauthorized search of their home.

25. Defendant officers' illegal search of the plaintiffs' home did not yield any contraband.

26. Mr. Perez was caused to sustain serious injuries on various parts of his body.

27. Defendant officers also subjected the plaintiffs to illegal and unlawful search.

28. Defendant officers' illegal search of the plaintiffs did not yield any contraband.

29. Eventually, defendant officers walked Mr. Perez out of his home to their police vehicle and placed him inside their police vehicle and transported him to NYPD-10th Precinct.

30. Upon information and belief, defendant officers searched the plaintiffs' home and damaged and/or destroyed several of the plaintiffs' properties.

31. Defendant officers' illegal search of the plaintiffs' home did not yield any contraband.

32. While at the precinct, defendant officers further subjected Mr. Perez to illegal and unlawful search.

33. Defendant officers did not recover any contraband from their unlawful search of Mr. Perez.

34. Nonetheless, defendant officers continued to detain Mr. Perez at the precinct.

35. After detaining Mr. Perez at the precinct for a lengthy period of time, he was transported to Central Booking to await arraignment.

36. At some point following the arrest, defendant officers met with prosecutors employed by the New York County District Attorney's Office.

37. During this meeting, defendant officers falsely stated to the prosecutors, among other things, that Mr. Perez committed aforesaid crimes.

38. Relying upon the falsified police records, reports and statements, the prosecutors initiated criminal actions against Mr. Perez.

39. Subsequently, Mr. Perez was arraigned on a criminal court complaint sworn to by defendant officers falsely charging him with aforesaid crimes.

40. Upon arraignment, Mr. Perez was released on his own recognizance but was required to return to the criminal court on multiple occasions to defend the false charges levied against him.

41. Mr. Perez subsequently appeared in criminal court on multiple occasions to defend the false charges levied against him.

42. On or about July 25, 2023, all the false charges levied against Mr. Perez were summarily dismissed.

43. Each and every officer who responded to and/or was present at the location of the arrest(s) and at the precinct and/or station house knew and was fully aware that the plaintiffs did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.

44. Nonetheless, defendants did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to protect and ensure the safety of the plaintiffs.

45. As a result of the aforesaid actions by defendants, plaintiffs suffered and continue to suffer emotional distress, fear, embarrassment, humiliation, shock, discomfort, loss of liberty, loss of love, companionship, affection and sexual relations, wages and financial losses, pain and damage, and damage to reputation.

FIRST CAUSE OF ACTION: FALSE ARREST - against defendant officers

46. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 45 of this complaint as though fully set forth herein.

47. Defendant officers seized and/or arrested the plaintiffs without probable cause or reasonable grounds.

48. The conduct of defendant officers, as described herein, amounted to false arrest.

49. Such conduct described herein violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

50. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION: UNREASONABLE SEARCH & SEIZURE - against defendant officers

51. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 50 of this complaint as though fully set forth herein.

52. Defendant officers unlawfully subjected the plaintiffs to illegal search of their person and/or property.

53. The conduct of defendant officers, as described herein, amounted to unreasonable searches and seizures.

54. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

55. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

THIRD CAUSE OF ACTION: EXCESSIVE USE OF FORCE - against defendant officers

56. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 55 of this complaint as though fully set forth herein.

57. The conduct of defendant officers, as described herein, amounted to excessive use of force.

58. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

59. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

FOURTH CAUSE OF ACTION: UNLAWFUL ENTRY - against defendant officers

60. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 59 of this complaint as though fully set forth herein.

61. Defendants, without justification or permission, intentionally entered into the premises.

62. Such entrance into the premises was warrantless, intentional and unlawful.

63. The conduct of defendant officers, as described herein, amounted to unlawful entry.

64. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

65. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FIFTH CAUSE OF ACTION: UNREASONABLE DETENTION - against defendant officers

66. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 65 of this complaint as though fully set forth herein.

67. Defendant officers denied plaintiffs their due process right to be free from continued detention after it was or should have been known that plaintiffs were entitled to release.

68. The conduct of defendant officers, as described herein, amounted to unreasonable detention.

69. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

70. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SIXTH CAUSE OF ACTION: FAILURE TO INTERVENE - against defendant officers

71. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 70 of this complaint as though fully set forth herein.

72. That each and every officer and/or individual who responded to, had any involvement and/or was present at the location of the arrest, assault and/or incident described herein knew and was fully aware that plaintiffs did not commit any crime or offense, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring.

73. Nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.

74. Such conduct described herein violated plaintiffs' rights under 42 U.S.C. § 1983 and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

75. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

SEVENTH CAUSE OF ACTION: FAILURE TO TRAIN/SUPERVISE/DISCIPLINE/SCREEN AND MUNICIPAL POLICY - against defendant City

76. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 75 of this complaint as though fully set forth herein.

77. Defendant City of New York, acting through NYPD, had actual and/or de facto policies, practices, customs and/or usages of making warrantless and nonconsensual entry into the home of individuals suspected of crimes to search and make arrests, and has failed to properly train, supervise or discipline its police officers concerning obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons, and obligation to effect an arrest only when probable cause exists for such arrest.

78. Defendant City of New York, acting through aforesaid NYPD, had actual and/or de facto policies, practices, customs and/or usages of wrongfully arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiffs, who are blacks, on the pretext that they were involved in robbery, narcotics, drugs, guns, weapons and/or other illicit activities.

79. Further, the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct.

80. For example, in *Floyd v. City of New York*, 813 F. Supp. 2d 417, 422 (S.D.N.Y. 2011), the court observed that defendant City had been accused of racial profiling on multiple occasions and that it had settled at least one of the lawsuits brought against it concerning racial profiling.

81. In *Ligon v. City of New York*, 925 F. Supp. 2d 478 (S.D.N.Y. 2013), the court determined that defendant City, acting through the NYPD, engages in unlawful stop and frisk. *See also Davis v. City of New York*, 959 F. Supp. 2d 324 (S.D.N.Y. 2013) (same).

82. Notably, numerous civil rights complaints filed in this district and other courts have similarly alleged that police officers routinely make nonconsensual entry into suspects' homes to make warrantless searches and seizures. *See, e.g., Robert Burroughs v. City of New York* (22 CV 4463); *Telisha Blakney v. City of New York* (Case No. 22 CV 4303); *Mike Joise v. City of New York* (Case No. 21 CV 2486).

83. Defendant City has settled numerous lawsuits in this district against several police officers alleging, among other things, that the police officers made nonconsensual entry into suspects' homes to make warrantless searches and seizures.

84. Despite the numerous complaints of civil rights violations described hereinabove, there has been no meaningful attempt on the part of defendant City to forestall further incidents and/or even to investigate claims that police routinely fabricate evidence, arrest innocent citizens without probable cause, and use excessive force in the arrest of innocent citizens.

85. As a result of defendant City's policy of relying upon investigation cards to enter into suspects' homes to search and make arrests and its failure to properly train, supervise or discipline

its police officers, defendant officers unreasonably seized and/or arrested the plaintiffs, illegally searched their home, and abused and/or assaulted the plaintiffs.

86. Defendant City maintained the above-described policies, practices, customs or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant City acted with deliberate indifference, and its failure was a direct and proximate cause of plaintiffs' injuries as described herein.

87. The actions of defendants, acting under color of State law, deprived plaintiffs of their due process rights, and rights, remedies, privileges, and immunities under the laws and Constitution of the United States, treatise, ordinances, customary international law and norms, custom and usage of a right; in particular, the right to be secure in their person and property, to be free from abuse of process, the excessive use of force, and the right to due process.

88. By these actions, defendants have deprived plaintiffs of rights secured by treatise, ordinances, customary international law and norms, custom and usage of a right, and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983.

EIGHTH CAUSE OF ACTION: NEW YORK STATE CONSTITUTION, ARTICLE I, §§ 5, 6, 8, 11 & 12 - against defendants

89. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 88 of this complaint as though fully set forth herein.

90. By reason of the foregoing, and by arresting, detaining and imprisoning plaintiffs without probable cause or reasonable suspicion, and harassing and assaulting them and depriving them of due process and equal protection of laws, defendants deprived plaintiffs of rights, remedies,

privileges, and immunities guaranteed to every New Yorker by Article I, § 5 (prohibiting cruel and unusual punishments), Article 1, § 6 (providing for due process), Article 1, § 8 (guaranteeing freedom of speech), Article 1, § 11 (prohibiting discrimination in civil rights and providing for equal protection of laws) & Article I, § 12 (prohibiting unreasonable searches & seizures) of the New York Constitution.

91. In addition, the individual officers conspired among themselves and conspired with other individuals to deprive plaintiffs of their constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.

92. The individual officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employments as officers, agents, or employees. The individual officers' acts were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. The individual officers acted willfully, knowingly, and with the specific intent to deprive plaintiffs of their constitutional rights secured by Article I, §§ 5, 6, 8, 11 & 12 of the New York Constitution.

93. Defendants, their officers, agents, servants, and employees were responsible for the deprivation of plaintiffs' state constitutional rights.

NINTH CAUSE OF ACTION: TORTS (FALSE ARREST/IMPRISONMENT) - against defendants

94. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 93 of this complaint as though fully set forth herein.

95. The conduct of the defendants, as described herein, amounted to false arrest/imprisonment.

96. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

TENTH CAUSE OF ACTION: TORTS (ASSAULT AND BATTERY) - against defendants

97. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 96 of this complaint as though fully set forth herein.

98. By reason of and as a consequence of the conduct of defendant officers, plaintiffs sustained bodily injuries with the accompanying pain.

99. The conduct of the defendants, as described herein, amounted to assault and battery.

100. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

ELEVENTH CAUSE OF ACTION: TORTS (TRESPASS) - against defendants

101. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 100 of this complaint as though fully set forth herein.

102. Defendants unlawfully entered into the premises.

103. Defendants performed an unlawful search of the premises, and subjected plaintiffs to unreasonable searches and seizures.

104. The conduct of defendants, as described herein, amounted to trespass.

105. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

TWELFTH CAUSE OF ACTION: TORTS (NEGLIGENCE AND/OR BREACH OF SPECIAL DUTY OR RELATIONSHIP) - against defendants

106. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 105 of this complaint as though fully set forth herein.

107. Defendants failed to properly care, supervise and protect the plaintiffs, failed to ensure the plaintiffs' health and safety, were careless and reckless in searching the plaintiffs and the premises, and were careless and negligent in their treatment of the plaintiffs and their properties.

108. The conduct of the defendants, as described herein, amounted to negligence and breach of special duty or relationship.

109. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

THIRTEENTH CAUSE OF ACTION: TORTS (NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS) - against defendants

110. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 109 of this complaint as though fully set forth herein.

111. The defendants engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiffs.

112. Defendants demonstrated a disregard to the substantial likelihood of causing severe emotional distress to the plaintiffs as a result of their illegal entry to the premises.

113. Plaintiffs' emotional distress have damaged their personal and professional lives because of the severe mental pain and anguish which were inflicted through deliberate and malicious actions including the search, arrest, assault, detention and imprisonment by defendants.

114. Consequently, plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

FOURTEENTH CAUSE OF ACTION: NEGLIGENT HIRING AND RETENTION OF EMPLOYMENT SERVICES - against Defendant City

115. By this reference, plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 114 of this complaint as though fully set forth herein.

116. Upon information and belief, defendant City failed to properly train, supervise or discipline its agents, servants, employees, officers and/or representatives, including the defendant officers, concerning correct practices in conducting investigations, reasonable search of individuals and/or their properties, the proper use of force, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligation to effect an arrest only when probable cause exists for such arrest.

117. Upon information and belief, Defendant City failed to properly screen, hire and/or retain the defendant officers.

118. Upon information and belief, Defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiffs to prevent the physical and mental abuse sustained by plaintiffs.

119. Upon information and belief, Defendant City, through its various agencies and departments including the defendants in this action, owed a duty of care to plaintiffs because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to plaintiffs or to those in a like situation would probably result from such conduct described herein.

120. Upon information and belief, Defendant City knew or should have known through the exercise of reasonable diligence that defendant officers were not prudent and were potentially dangerous.

121. Upon information and belief, Defendant City's negligence in screening, hiring and retaining defendant officers proximately caused plaintiffs' injuries.

WHEREFORE, plaintiffs respectfully pray judgment as follows:

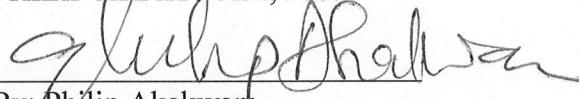
- a. For compensatory damages against all defendants in an amount to be proven at trial;
- b. For exemplary and punitive damages against all defendants in an amount to be proven at trial;
- c. For costs of suit herein, including plaintiffs' reasonable attorney's fees; and
- d. For such other and further relief as the court deems proper.

DEMAND FOR TRIAL BY JURY

Pursuant to Rule 38 (b) of the Federal Rules of Civil Procedure, plaintiffs demand a trial by jury.

Dated: Brooklyn, New York
August 28, 2024

PHILIP AKAKWAM, P.C.



By: Philip Akakwam

Attorney for the Plaintiffs
303 Livingston Street, Second Floor
Brooklyn, New York 11217
Tel. No: (718) 858-2488
Fax No: (718) 576-2685
Email: pakakwam@gmail.com

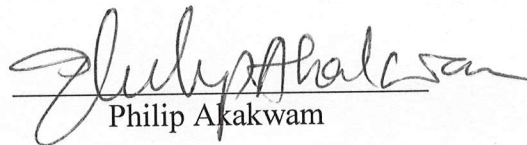
VERIFICATION BY ATTORNEY

STATE OF NEW YORK)
)ss.:
COUNTY OF KINGS)

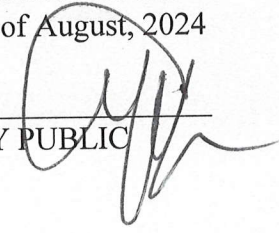
PHILIP AKAKWAM, being duly sworn, deposes and says:

That he is the attorney for the plaintiffs JASON PEREZ and ENID LOPEZ in the above entitled action with offices located at 303 Livingston Street, 2nd Floor, Brooklyn, Kings County, New York; that he has read the foregoing COMPLAINT and knows the contents thereof; that the same is true to his knowledge, except as to the matters stated to be alleged upon information and belief, and that as to those matters he believes them to be true.

That the reason why this verification is made by deponent instead of the plaintiffs is because the plaintiffs do not reside within Kings County which is the county where deponent has his office. Deponent further says that the grounds of his belief as to all matters in the COMPLAINT not stated to be upon his knowledge are based upon information contained in plaintiffs' file in deponent's possession, conversations with plaintiff and a review of writings relevant to this action.


Philip Akakwam

Sworn to before me this
28th day of August, 2024


NOTARY PUBLIC

Osundu Anyadike, Esq.
Notary Public, State of New York
No. 02AN6215511
Qualified in Kings County.
Commission Expires May 17, 2027.

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JASON PEREZ AND ENID LOPEZ

Plaintiffs,

-against-

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AND JANE DOE #1-4 (the names John and Jane Doe
being fictitious, as the true names are presently unknown)

Defendants.

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF PHILIP AKAKWAM, P.C.

Attorney for Plaintiffs

Office and Post Office Address

303 Livingston Street, 2nd Floor

Brooklyn, N.Y. 11217

(718) 858-2488

TO:

Service of a copy of the within is hereby admitted.

Dated:
